

Here, considering the moving papers and evidence submitted therewith, the evidence presented at trial, and the entire court file, the court declines to exercise its discretion to award attorneys' fees and costs to respondent.

While the court need not and does not reach the merits of this motion, the court observes respondent's evidence is insufficient to support a finding of reasonableness as to the number of hours incurred, the hourly rate of counsel, or the costs incurred as respondent provides no evidence of the training and experience of counsel, did not provide billing invoices or sufficiently detailed information to permit the court to assess whether the number of hours worked on each task was reasonable, and did not provide any specific itemization of costs. The motion could not be granted on this evidence.

Based on the foregoing, the motion for attorneys' fees and costs is denied and each side shall bear their own costs.

3. T-CV-0002858 James Taylor Macdonell v. Manuel Ochoa

Respondent is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Respondent moves for an award of attorneys' fees and costs against petitioner totaling \$13,724.25 pursuant to Code of Civil Procedure section 527.6(s). Petitioner opposes the motion.

The prevailing party in a CHRO proceeding may be awarded court costs and attorney's fees. (Code Civ. Proc., § 527.6, subd. (s).) As Code of Civil Procedure section 527.6 does not define prevailing party, the definition in Code of Civil Procedure section 1032(a)(4) applies: "'Prevailing party' includes . . . a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4); see also *Adler v. Vaicius* (1993) 21 Cal.App.4th 1770 [applying Section 1032(a)(4)'s definition to CHRO proceedings].) Here, respondent is the prevailing party and the court may award respondent attorneys' fees and costs if it determines in its discretion to do so.

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